

HEADNOTE

“1. Even though the respective size of the parties and their domiciliation are important factors to decide on an application pursuant to R. 323 RoP, the fact that the Claimants have demonstrated their capacity to litigate in English by filing other actions in comparable circumstances shall be taken into account and considered with regard to the need for efficient communication and coordination of the adverse party that must prepare its defence within strict time constraints.”

COURT
Local Division in Mannheim

PROCEEDINGS
Infringement action

PATENT
EP3743812

Application runtime determined
dynamical allocation of heterogeneous
compute resources

KEYWORDS

Change of the language of the proceedings

Art. 49 (5) UPCA and R. 323 RoP

Rule 323 Application by one party to use the language in which the patent was granted as language of the proceedings

SUMMARY

The Local Division in Mannheim ruled on an infringement action. The patent at issue relates to application runtime determined dynamical allocation of heterogeneous compute resources. According to the headnotes of the decision, while the size and location of the parties are relevant factors in procedural applications, the court may also consider whether the claimants have already demonstrated their ability to conduct litigation in English in similar cases, taking into account the need for efficient communication and the defendant's obligation to prepare its defence within strict procedural deadlines.